

****July 5, 2023****

****ANPC Prohibition - Body Cam****

The National Supervisory Authority has completed an investigation in June 2023 regarding the operator National Authority for Consumer Protection (ANPC) and found a violation of the provisions of Article 5 paragraph (1) letter a), in relation to Article 6 paragraph (1) of Regulation (EU) 2016/679. ANPC was sanctioned with a warning, according to the provisions of Law no. 190/2018.

The sanction was applied following an investigation initiated due to complaints regarding the fact that the ANPC operator violates data protection legislation by processing personal data through the use of body camera devices "assigned to commissioners with control duties for use in all control actions" and that "for more than 6 months, ANPC commissioners have been recording inspections and capturing in these images, without any consent and without any supervision, not only colleagues, employees, or representatives of economic operators, but also a multitude of private individuals, children or adults, in stores, at swimming pools, in restaurants, at bars or in salons."

During the investigation, it was found that ANPC processes personal data collected through Body Camera devices (name and surname, position/status, image, voice, and behavior), starting from May 2023, for the purpose of preconstituting evidence related to control actions.

The operator could not prove that the processing carried out using Body Camera devices has a basis in the applicable domestic law. No express legal provision was found that provides for the use of portable Body Cam cameras, with audio-video recording function, in the activity of ANPC, related to its specific duties.

As such, it was found that the processing of personal data (name, surname, position/status, image, voice, behavior) through the portable audio-video surveillance system was carried out without a legal obligation of the operator, without the processing being carried out to fulfill a task serving a public interest or part of the exercise of public authority, and without meeting any other conditions provided in Article 6 paragraph (1) correlated with paragraph (3) of the GDPR. According to Article 5 paragraph (1) letter a) of the GDPR, the operator had the obligation to process data legally, fairly, and transparently concerning the data subject.

In addition to the warning sanction, the National Authority for the Supervision of Personal Data Processing also applied a corrective measure, ordering that the ANPC operator cease any operation or set of operations of processing personal data carried out through portable Body Cam devices with audio-video recording function and delete personal data from the record system established as a result of the use of such devices.

The operator National Authority for Consumer Protection informed the National Authority for the Supervision of Personal Data Processing that it has complied with the ordered measure.

In this context, regarding the use of body cams by public institutions, we mention that, following investigations carried out by ANSPDCP, it was found that operators such as UAT Cluj (Local Police), UAT Constanța (Local Police), and the Municipality of Sector 4 Bucharest (Local Police) violated the provisions of Article 5 paragraph (1) letter a) in relation to Article 6 paragraph (1) of Regulation (EU) 2016/679, as the Local Police personnel, while performing their specific missions and activities, processed personal data through the use of the portable audio-video system known as "Body-Worn Camera" (image and voice), without a legal obligation of the operator and without meeting any other conditions provided in Article 6 paragraph (1) of the GDPR.

We also highlight that through final decisions from 2022 and 2023, the courts upheld the decisions of ANSPDCP which ordered the cessation of processing and deletion of images collected by the local police, following inspections that found the lack of legality of those data processing activities (in disputes with UAT Cluj - Local Police and UAT Constanța - Local Police).

Thus, the Court of Appeal Constanța ruled, among other things, in the decision given in the dispute UAT Constanța with ANSPDCP that: "The decision represents the act by which specific corrective measures are established and applied, namely, the deletion of data, according to the provisions of Article 16 paragraph 6 of Law no. 102/2005, being issued based on the facts and circumstances established by the contravention report (...), an act through which the violation of the law was established and the obligation to fulfill the remediation measures set out in the remediation plan

annexed to the contravention report."

At the same time, the Court of Appeal Bucharest, in the dispute with UAT Cluj, ruled that "(...) the defendant authority found the violation of Regulation (EU) 2016/679, as the personnel of the General Directorate of Local Police Cluj-Napoca, while performing their specific missions and activities, processed personal data through the use of the portable audio-video system known as 'Body-Worn Camera' (image and voice), starting from October 2019, without a legal obligation of the operator and without meeting any other conditions provided in Article 6 paragraph (1) of the GDPR, although according to Article 5 paragraph (1) letter a) of the GDPR, the operator had the obligation to process data legally, fairly, and transparently concerning the data subject.

Consequently, by the contested Decision, the claimant was ordered to cease any operation or set of operations for the processing of personal data carried out through "Body-Worn Camera" audio-video systems and to delete the personal data record established as a result of using such systems.

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